



SPONSOR: Rep. Shupe & Sen. Buckson
Rep. Hilovsky; Sen. Wilson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 86

AN ACT TO AMEND TITLE 14 AND TITLE 15 OF THE DELAWARE CODE RELATING TO RECOUNTS OF
BALLOTS IN ELECTIONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 1083, Title 14 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 1083. Counting ballots; tie vote; certification of election.

4 (c) ~~Within 96 hours following the certification of a public school election, 25 or more persons who voted in the~~
5 ~~aforesaid public school election may petition the Department of Elections that conducted the election for a recompilation of~~
6 ~~the results, if~~ If the difference in the election of a school board member or in an election conducted in accordance with
7 Chapter 19, ~~20~~ 20, or 21 of this title ~~was less than 10 votes or $\frac{1}{2}$ of 1 percent~~ is 1% or less of the total vote whichever is
8 larger. The petition shall contain the printed name, signature and the voting location of each petitioner. The recompilation
9 ~~shall be conducted no later than 5 business days after the verification of the petition. The~~ all votes cast in that election, the
10 ~~Department of Elections that conducted the elections shall:~~ shall recount the ballots cast in that election at state expense.

11 (1) ~~Examine the voting machine tape from each voting machine used in the election and determine if the~~
12 ~~results were properly reported. The department shall then correct any results that were incorrectly reported.~~

13 (2) ~~Examine the absentee vote tally sheets and determine if errors were made in reporting the absentee vote.~~
14 ~~The department shall then correct any errors in the reporting of the absentee votes.~~

15 (3) ~~Count or cause to be counted all absentee ballots that were cast in the election and correct any errors in the~~
16 ~~tally that had been reported.~~

17 (4) ~~Certify or, if necessary, recertify the recompiled results as required by this title.~~

18 Section 2. Amend § 3172, Title 15 of the Delaware Code by making deletions as shown by strike through and
19 insertions as shown by underline as follows:

20 § 3172. Calculation of votes; ties.

21 (c) If the number of votes separating a the candidate with the most votes and the closest opposing candidate in a
22 primary election is ~~less than 1,000 votes, in the case of a statewide contest, or $\frac{1}{2}$ of 1%~~ or less of 1% of all votes cast for the 2

23 candidates, ~~in the case of any other contest, whichever is less,~~ the Department shall recount the ballots cast in that election
24 at state expense as part of the canvass of the vote.

25 Section 3. Amend § 5702, Title 15 of the Delaware Code by making deletions as shown by strike through and
26 insertions as shown by underline as follows:

27 § 5702. Duties of Court.

28 (c) ~~Any~~ If the number of votes separating the candidate with the most votes and the closest opposing candidate for
29 statewide office in a general election ~~may apply to the Court for a recount of all the ballots cast and recorded for such office~~
30 ~~if the number of votes separating such candidate and the closest opposing candidate is less than 1,000 votes or less than one~~
31 ~~half of one percent~~ is 1% or less of all votes cast for the two 2 candidates, ~~whichever amount is less. Such recount shall~~
32 ~~thereupon be conducted by the Court~~ shall recount the ballots cast in that election at state expense. ~~The request for a recount~~
33 ~~under this subsection must be presented before the adjournment of the board of canvass for the election in question and any~~
34 ~~recount that takes place shall not extend beyond the petitioner's contest.~~

35 (e) If the number of votes separating a the candidate with the most votes and the closest opposing candidate in an
36 election for State Senator, State Representative, or county office is ~~less than 1,000 votes or $\frac{1}{2}$ of 1% or less~~ of all votes cast
37 for the 2 candidates, ~~whichever is less,~~ the Court shall recount the ballots cast in that election at state expense.

SYNOPSIS

This Act establishes a uniform threshold and procedure for a recount after a primary or general election for a statewide office, State Senator, State Representative, county office, the City of Wilmington, or school district elections. Under this Act, a recount will be conducted if the difference in the number of votes is 1% or less.

This Act makes the following changes to current law:

- Eliminates the need for a candidate to request a recount after a general election for statewide office, State Senator, State Representative, county office, or office in the City of Wilmington.
- Eliminates the need for 25 voters to petition for a recount in school district elections.
- Establishes a clear threshold for a recount equal to a difference of 1% or less of the votes cast.

Changing the recount threshold to 1% or less will likely be a substantive change to existing law only for statewide elections and county-wide offices in New Castle County. Current law allows a recount after a primary or general election for a statewide office, State Senator, State Representative, county office, or office in the City of Wilmington if the number of votes separating 2 candidates is less than 1,000 votes or $\frac{1}{2}$ of 1% of all of the votes cast for the 2 candidates, whichever is less.

- Based on the number of votes cast in the most recent elections, $\frac{1}{2}$ of 1% and 1% of the votes cast will almost always be under 1,000 for State Senator, State Representative, county office, or office in the City of Wilmington.
- For statewide offices or county-wide offices in New Castle County, $\frac{1}{2}$ of 1% will almost always be more than 1,000 votes so changing the threshold to 1% or less will allow for recounts after more elections for these offices.

Similarly, under existing law, a recount may be requested in a school district election if the difference in the election of a school board member or in the outcome of an election regarding taxes, standard school construction, or bonds is less than 10 votes or $\frac{1}{2}$ of 1% of the total vote, whichever is larger. Both 1% and $\frac{1}{2}$ of 1% of the votes cast will almost always be more than 10 votes.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual, including revisions to align § 1083 of Title 14 with the current responsibilities and practices of the Department of Elections.

This Act does not need a super-majority because this Act does not change the City of Wilmington's authority under its charter because in 1955, the General Assembly enacted 50 Del. Laws. c. 390, § 9, which clearly provides that Chapters 31 and 57 of Title 15 are applicable to the holding of elections in the City of Wilmington.